

SENATE No. 1732

The Commonwealth of Massachusetts

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to enhanced fire protection in new one- and two-family dwellings.

PETITION OF:

NAME:

Michael O. Moore

DISTRICT/ADDRESS:

Second Worcester

SENATE No. 1732

By Mr. Moore, a petition (accompanied by bill, Senate, No. 1732) of Michael O. Moore for legislation relative to enhance fire protection in new one- and two-family dwellings. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1552 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to enhanced fire protection in new one- and two-family dwellings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 148 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by adding after section 26I, the following section: -

3 Section 26J. In any city or town which accepts the provisions of this section, every newly
4 constructed building, designed or used for residential occupancy and containing not more than
5 two dwelling units, shall be protected throughout with an adequate system of automatic
6 sprinklers installed in accordance with the provisions of the state building code. The provisions
7 of this section shall apply to any such newly constructed building for which a building permit is
8 issued on or after one year from the acceptance of this act by a city or town. Nothing in this
9 section shall require any existing building designed or used for residential occupancy, to be
10 required to retrofit said property with an automatic sprinkler system.

11 The head of the fire department shall enforce the provisions of this section.

12 Whoever is aggrieved by the head of the fire department's interpretation, order,
13 requirement, direction or failure to act under the provisions of this section, may, within forty-five
14 days after the service of notice thereof, appeal from such interpretation, order, requirement,
15 direction, or failure to act, to the board of appeals as provided in section 201 of chapter 6.

16 SECTION 2. Section 27A of chapter 148, as so appearing, is amended by inserting, after
17 the word "service", in line 19, the following sentence:- This section shall not apply to the
18 seasonal shut-off of automatic sprinklers installed in accordance with the provisions of section
19 26J of chapter 148, when such shut off has been conducted in accordance with the procedures
20 established by the Board of Fire Prevention Regulations. For purposes of this section, the Board
21 shall determine what constitutes a seasonal shutoff of automatic sprinklers.